

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK

MARC M. MOSZKOWSKI,

Plaintiff,

v.

DAVID L. RUMSEY, ESQ., RUSTIN R.
HOWARD, DEEPGULF, INC., AND
JOHN DOES 1-10,

Defendants.

ORDER

6:26-CV-6015 EAW

Pro se plaintiff Mark M. Moszkowski (“Plaintiff”) filed a complaint asserting claims under the Racketeer Influenced and Corrupt Organizations Act (“RICO”), 18 U.S.C. §§ 1961-1968, and related state law claims (Dkt. 1), but he did not pay the filing fee or submit an application to proceed *in forma pauperis* (that is, as someone who should have the prepayment of the ordinary filing fee waived because he cannot afford it).

As set forth below, the Clerk of Court shall administratively terminate this action. If Plaintiff wishes to reopen this case, he must notify the Court in writing **within 30 days of the date of this Order** and must include either (1) a complete application to proceed *in forma pauperis* or (2) the \$350.00 filing fee and the \$55.00 administrative fee (\$405.00 total).

DISCUSSION

I. ADMINISTRATIVE TERMINATION OF THIS ACTION

A party commencing a civil action in this Court ordinarily must pay a \$350.00 filing fee as well as a \$55.00 administrative fee.¹ *See* 28 U.S.C. § 1914; Judicial Conference Schedule of Fees, District Court Miscellaneous Fee Schedule;² Western District of New York, District Court Schedule of Fees.³ If a party wishes to commence a civil action, the party must either (1) pay those fees or (2) obtain permission to proceed *in forma pauperis*, under 28 U.S.C. § 1915.

Here, Plaintiff did not pay the \$350.00 filing fee or the \$55.00 administrative fee that ordinarily is required to commence a civil action. Nor did he submit an application to proceed *in forma pauperis*. *See* 28 U.S.C. § 1915(a)(1)-(2). Therefore, the Clerk of Court shall administratively terminate this action⁴ without filing the complaint or assessing a

¹ Effective May 1, 2013, the Judicial Conference of the United States added an administrative fee to the cost of filing a civil lawsuit in district court. *See* September 2012 Report of the Proceedings of the Judicial Conference of the United States, available at <http://www.uscourts.gov/about-federal-courts/reports-proceedings-judicial-conference-us>. Effective December 1, 2023, this fee was increased to \$55.00. *See* <https://www.uscourts.gov/services-forms/fees/district-court-miscellaneous-fee-schedule>.

² Available at <http://www.uscourts.gov/services-forms/fees/district-court-miscellaneous-fee-schedule>.

³ Available at <http://www.nywd.uscourts.gov/fee-schedule>.

⁴ Such an administrative termination is not a “dismissal” for purposes of the statute of limitations. Therefore, if the case is reopened under the terms of this order, it is not subject to the statute of limitations time bar as long as it originally was timely filed. *See McDowell v. Del. State Police*, 88 F.3d 188, 191 (3d Cir. 1996); *see also Williams-Guice v. Bd. of Educ.*, 45 F.3d 161, 163 (7th Cir. 1995).

filing fee, as ordered below. As also ordered below, Plaintiff is granted leave to reopen this action no later than 30 days from the date of this Order.

II. DEFERMENT OF SCREENING UNDER 28 U.S.C. § 1915

The court is required to screen civil actions and dismiss them if they: (1) are frivolous or malicious; (2) fail to state a claim upon which relief may be granted; or (3) seek monetary relief against a defendant who is immune from such relief. *See* 28 U.S.C. § 1915(e)(2). Because Plaintiff did not properly commence this action, this Court will defer the mandatory screening process until this case is reopened—if, in fact, it is reopened. If this action is reopened and then dismissed, Plaintiff will not be permitted to obtain a refund of the filing fee.

ORDER

IT IS HEREBY ORDERED that the Clerk of Court shall administratively terminate this action without filing the complaint or assessing a filing fee; and it is further

ORDERED that the Clerk of Court is directed to send to Plaintiff a form motion to proceed *in forma pauperis* and an authorization form; and it is further

ORDERED that if Plaintiff wishes to reopen this action, he shall so notify this Court, in writing, no later than **30 days from the date of this Order**. This writing must include either (1) a complete application to proceed *in forma pauperis* or (2) the \$350.00 filing fee and the \$55.00 administrative fee (\$405.00 total); and it is further

ORDERED that upon Plaintiff's submission of either (1) a complete application to proceed *in forma pauperis* or (2) the \$350.00 filing fee and the \$55.00 administrative fee (\$405.00 total) the Clerk of Court shall reopen this case without further order.

SO ORDERED.

Dated: January 14, 2026
Rochester, New York



ELIZABETH A. WOLFORD
Chief Judge
United States District Court